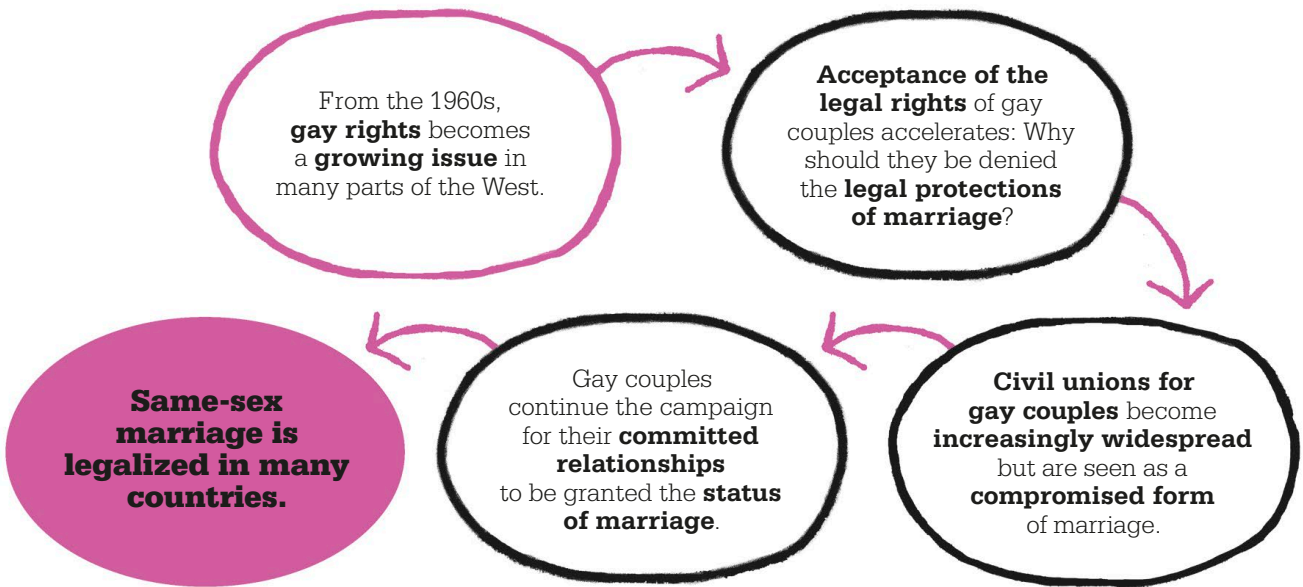


**See also:** The Representation of the People Act 188–189 ■ The Universal Declaration of Human Rights 222–229 ■ The Civil Rights Act 248–253 ■ The International Covenant on Civil and Political Rights 256–257 ■ *Roe v. Wade* 260–263



although laws vary across different countries, especially regarding the adoption of children. But a civil union lacks what might be called the spiritual status of marriage—its essence of profound commitment—which is reflected in the fact that the ceremony cannot contain any religious element, and no vows are exchanged. Pointing to a range of ceremonial, legal, and constitutional differences between civil unions and marriages, campaigners for equal rights highlighted that imposing a separate arrangement on same-sex couples treated them as inferior to their heterosexual counterparts. This distinction was criticized as “separate but equal”—a reference to a doctrine in US constitutional law invoked in the 19th century to justify racial segregation.

### Cultural changes

The struggle for gay rights has gathered pace since the 1960s, and prejudice against homosexuality is

increasingly perceived to be a form of abuse—as unreasonable as it is self-defeating. The argument that civil union implies a lesser status than marriage has gained ground, and same-sex marriage has become an indicator of cultural tolerance and progression. Gradually, other nations have followed the Netherlands’ lead; by 2020, 29 countries had legalized gay marriage.

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Marriage should be between a spouse and a spouse, not a gender and a gender.

**Hendrik Hertzberg**  
American journalist (1943–)

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However, the acceptance of what has come to be known as LGBTQ (lesbian, gay, bisexual, and transgender) rights is an almost exclusively Western phenomenon. Of the 29 countries where same-sex marriage is legal, 16 are in Europe, 7 in Latin America, 2 in North America, 2 in Australasia, 1 in Africa, and 1 in Asia. Across the vast majority of the world, gay marriage—and homosexuality—remains illegal.

Even in Europe, there is a clear split in attitudes, mostly along east–west lines. Public opinion polls in 2019 showed France, Germany, Belgium, the Netherlands, the UK, Italy, Spain, Portugal, and the Nordic countries to be resolutely in favor of same-sex marriage, while Greece, Hungary, Romania, Bulgaria, Poland, Latvia, Lithuania, and Slovakia were as resolutely opposed—despite an EU ruling in 2018 that same-sex marriages performed in one EU country must be recognized in EU »